

[16 & 17 GEO. 5.] *Glasgow Education* [Ch. xxxvii.]
Authority (Juvenile Delinquency) Order Confirmation
Act, 1926,



CHAPTER xxxvii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Glasgow Education Authority (Juvenile Delinquency). A.D. 1926.

[8th July 1926.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament : 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Glasgow Education Authority (Juvenile Delinquency) Order Confirmation Act 1926. Short title.

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SCHEDULE.

GLASGOW EDUCATION AUTHORITY (JUVENILE
DELINQUENCY).

Provisional Order for the transfer to the Education Authority of the Burgh of Glasgow of the powers and duties and whole assets and liabilities of the Commissioners for the Prevention and Repression of Juvenile Delinquency in the city of Glasgow and of the Directors of Houses of Refuge and Reformatory and Industrial Schools in the city of Glasgow to dissolve such Commissioners and Directors to repeal the Glasgow Juvenile Delinquency Prevention and Repression Acts 1878 and 1896 to repeal certain Orders pronounced by the Secretary for Scotland in pursuance of section 132 of the Children Act 1908 and for other purposes.

WHEREAS by the Glasgow Juvenile Delinquency Prevention and Repression Act 1878 (hereinafter referred to as "the Act of 1878") there was established in the city of Glasgow (hereinafter referred to as "the city") a body corporate called the Commissioners for the Prevention and Repression of Juvenile Delinquency in the city of Glasgow (hereinafter referred to as "the Commissioners") for the purpose of maintaining or assisting in the maintenance of certain Protestant and Roman Catholic houses of refuge and reformatory and industrial schools in the city and with power to levy and collect a special rate as also another body corporate called the Directors of Houses of Refuge and Reformatory and Industrial Schools in the city of Glasgow (hereinafter referred to as "the Directors") for the purpose of maintaining and managing certain Protestant houses of refuge and reformatory and industrial schools in the city :

And whereas by the Glasgow Juvenile Delinquency Prevention and Repression Amendment Act 1896 (hereinafter referred to as "the Act of 1896") amendments were made upon the Act of 1878 :

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And whereas by virtue of the powers conferred upon the Secretary for Scotland by section 132 of the Children Act 1908 the Secretary for Scotland did on the eighteenth day of October one thousand nine hundred and nine and again on the eighteenth day of June one thousand nine hundred and eighteen pronounce Orders (hereinafter referred to as "the Orders of 1909 and 1918") for the amendment of the Act of 1878 and the Act of 1896 : A.D. 1926.

And whereas by the Education (Scotland) Act 1918 a local authority for the purpose of education was as a body corporate constituted in and for the city (otherwise the burgh of Glasgow) such body (hereinafter referred to as "the education authority") being known as the Education Authority of the Burgh of Glasgow :

And whereas provision was made by section 19 of the Education (Scotland) Act 1918 for the transfer to the Scottish Education Department (hereinafter referred to as "the Department") of any powers relating to reformatory and industrial schools in Scotland for the time being possessed by the Secretary for Scotland under the Children Act 1908 or any local Act :

And whereas the transfer last mentioned has been made :

And whereas the houses of refuge mentioned in section 27 (Directors to carry on houses of refuge and schools transferred to or afterwards established by them) of the Act of 1878 are no longer the subject of grants from the Commissioners :

And whereas there are under the management of the Education Authority (who are not restricted in their powers to making provision for Protestant children only) certain day industrial schools not confined to the reception therein of Protestant children and under the management of the Directors certain other day industrial schools as also certain residential industrial schools and a reformatory school the same being confined to the reception therein of Protestant children the supervision inspection and other cognizance of and the making of grants towards the maintenance of all of the said schools being within the powers of the Department :

And whereas the Education Authority have statutory power to make contributions towards the maintenance

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A.D. 1926. of schools not under the management of the Education Authority but operative in and for the benefit of the area of the Education Authority :

And whereas the Directors have with the approval of the Department requested the Education Authority to take over the management of the reformatory school and of the residential and day industrial schools under the management of the Directors with which request the Education Authority have agreed to comply :

And whereas it is expedient that the property of the Commissioners and Directors be transferred to and vested in the Education Authority that the Commissioners and Directors be dissolved and that the Act of 1878 and the Act of 1896 and the Orders of 1909 and 1918 be repealed :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows :—

Short title. 1. This Order may be cited as the Glasgow Education Authority (Juvenile Delinquency) Order 1926.

Commence-
ment of
Order. 2. This Order except where otherwise expressly provided shall commence and have effect on and from the first day of April one thousand nine hundred and twenty-six and that date is hereinafter referred to in this Order as “ the commencement of this Order.”

Interpre-
tation. 3. In this Order unless there be something in the subject or context repugnant to such construction :—

(i) The expression “ the Act of 1878 ” means the Glasgow Juvenile Delinquency Prevention and Repression Act 1878 ;

(ii) The expression “ the Act of 1896 ” means the Glasgow Juvenile Delinquency Prevention and Repression Amendment Act 1896 ;

(iii) The expression “ the Orders of 1909 and 1918 ” means the Orders pronounced by the Secretary for Scotland dated respectively the

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eighteenth day of October one thousand nine hundred and nine and the eighteenth day of June one thousand nine hundred and eighteen amending the Act of 1878 and the Act of 1896;

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- (iv) The expression "the Commissioners" means the Commissioners for the prevention and repression of juvenile delinquency in the city incorporated by and acting under the Act of 1878 and the Act of 1896 and the Orders of 1909 and 1918;
- (v) The expressions "the corporation" and "the city" respectively mean "the corporation of the city of Glasgow" and "the city and royal burgh of Glasgow";
- (vi) The expression "the Directors" means the Directors of houses of refuge and reformatory and industrial schools in the city incorporated by and acting under the Act of 1878 and the Act of 1896 and the Orders of 1909 and 1918;
- (vii) The expression "the Department" means the Scottish Education Department;
- (viii) The expression "the Education Authority" means the Education Authority of the burgh of Glasgow;
- (ix) The expression "Protestant reformatory schools" means and comprehends the existing school belonging or reputed to belong to the Directors which has been duly certified as a reformatory school under the provisions of the Reformatory Schools Act 1866 and is known as the Chapelon Training School for Girls East Chapelon Bearsden near the city and any other school with the grounds attached thereto within the city or outwith the same which shall hereafter be established by or placed under the management of the Education Authority for the better training of youthful offenders who are of the Protestant faith (including if so established any school where special provision is or shall be made for the training of youthful offenders suffering from

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mental or physical defect) and which may be duly certified by the Department under the provisions of the Children Acts 1908 to 1921 or of any other Act in force for the time being relating to reformatory schools;

- (x) The expression "Protestant industrial schools" means and comprehends (a) the existing residential schools belonging or reputed to belong to the Directors which have been duly certified as industrial schools under the provisions of the Industrial Schools Act 1866 and are known respectively as (1) the Boys' Industrial School Mossbank Hogganfield near the city and the Boys' Home in Whitevale Street in the city in connection therewith and (2) the Girls' Industrial School Maryhill in the city and the Girls' Home in Rottenrow in the city in connection therewith and (b) the existing day schools belonging or reputed to belong to the Directors which have been duly certified as day industrial schools under the provisions of the Act of 1878 or of the Day Industrial Schools (Scotland) Act 1893 or of the Children Acts 1908 to 1921 and are known respectively as (3) Rottenrow Day Industrial School in the city (4) Green Street Day Industrial School in the city (5) Rose Street Day Industrial School in the city (6) William Street Day Industrial School in the city and (7) Hopehill Road Day Industrial School in the city and shall also mean and comprehend any other residential or day school with the grounds attached thereto within the city or outwith the same which has been or may hereafter be established by or placed under the management of the Education Authority for the industrial training of children who are of the Protestant faith (including if so established any school where special provision is or shall be made for the training of children suffering from mental or physical defect) and which may be duly certified under the provisions of the Education (Scotland) Acts 1872 to 1925 or of the Children Acts 1908 to 1921 or of any other Act in force

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for the time being relating to residential or day industrial schools; A.D. 1926.
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- (xi) The expression "Roman Catholic reformatory schools" means and comprehends the existing school belonging or reputed to belong to managers other than the Commissioners the Directors or the Education Authority which has been duly certified as a reformatory school under the provisions of the Reformatory Schools Act 1866 and is known as Parkhead Reformatory for Roman Catholic Boys in the city and shall also mean and comprehend any other school with the grounds attached thereto within the city or within an area around the same of fifteen miles radius measured from the Cross of the city which shall hereafter be established by or under the Education Authority or by or under other managers for the better training of youthful offenders who are of the Roman Catholic faith (including if so established any school where special provision is or shall be made for the training of youthful offenders suffering from mental or physical defect) and which may be duly certified as reformatory schools under the provisions of the Children Acts 1908 to 1921 or of any other Act in force for the time being relating to reformatory schools;
- (xii) The expression "Roman Catholic industrial schools" means and comprehends the existing schools belonging or reputed to belong to managers other than the Commissioners the Directors or the Education Authority which have been duly certified as industrial schools under the provisions of the Industrial Schools Act 1866 and are known respectively as (1) Slatefield Industrial School for Roman Catholic Boys Slatefield Street in the city (2) Glasgow Orphanage and Industrial School for Roman Catholic Boys Kenmure Bishopbriggs near the city (3) Glasgow Orphanage and Industrial School for Roman Catholic Girls 570 Gallowgate in the city and (4) Dalbeth

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Industrial School for Roman Catholic Girls in the city and shall also mean and comprehend any other school with the grounds attached thereto within the city or within an area around the same of fifteen miles radius measured from the Cross of the city which shall hereafter be established by or under the Education Authority or by or under other managers for the industrial training of children who are of the Roman Catholic faith (including if so established any school where special provision is or shall be made for the training of children suffering from mental or physical defect) and which may be duly certified under the provisions of the Education (Scotland) Acts 1872 to 1925 of the Children Acts 1908 to 1921 or of any other Act in force for the time being relating to residential or day industrial schools;

(xiii) The expression "existing" means existing immediately prior to the commencement of this Order.

Transfer of
existing
Protestant
schools to
Education
Authority.

4. As from the commencement of this Order the existing Protestant reformatory school and the existing Protestant industrial schools shall be transferred to the Education Authority together with the whole areas of ground upon and the buildings in which the said several schools are carried on and without prejudice to this generality the areas of ground (or in the case of leasehold subjects the tenancy rights of the areas of ground) specified in the First Schedule to this Order forming the sites and pertinents of the several school buildings occupied by these several existing schools together with the said school buildings themselves and the whole other buildings and erections on the said areas of ground together also with the whole furniture and plenishing fittings and fixtures plant implements utensils and stocks and materials of every description in or about the said buildings and erections as also any other heritable property owned or possessed by or vested in the Directors otherwise than in or about one or other of the aforesaid existing schools as at the commencement of this Order shall be and the same are by virtue of this Order transferred to and vested in the Education

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Authority without the necessity of any conveyance instrument or notice of title or any feudal infeftment or further process of law or any assignation or other writ and shall be accepted by the Education Authority subject in the case of heritable property to the whole feu duties real liens and other burdens provisions conditions reservations declarations and obligations so far as still subsisting and applicable and either now or hereafter payable or prestable in terms of the title deeds and also to all servitudes restrictions and agreements (if any) now affecting or which may hereafter affect the same and the said areas of ground school buildings and others shall subject to the provisions of this Order be held used and administered by the Education Authority for the purposes of the Education (Scotland) Acts 1872 to 1925 and of the Children Acts 1908 to 1921.

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5. Minute books account books records or other documents and all furniture fittings or other moveable property and all funds assets rates grants and debts orders decrees warrants diligences and things in action owned or possessed by or vested in the Directors situated otherwise than in or about one or other of the existing Protestant reformatory school and the existing Protestant industrial schools shall as from the commencement of this Order and subject to the provisions of this Order be and the same are by virtue of this Order transferred to and vested in and shall become the property of the Education Authority for the purposes of this Order of the Education (Scotland) Acts 1872 to 1925 and of the Children Acts 1908 to 1921.

Transfer of records et cetera of Directors to Education Authority.

6. As from the commencement of this Order all property heritable or moveable and all funds assets rates and debts and things in action owned or possessed by or vested in or due to the Commissioners (including assessments collected or to be collected by the Corporation in pursuance of section 10 of the Order of 1909) and also all minute books account books records and other documents of an administrative nature belonging to the Commissioners shall be and the same are by virtue of this Order transferred to and vested in the Education Authority without the necessity of any conveyance instrument or notice of title or any feudal infeftment

Transfer of property of Commissioners to Education Authority.

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Records of
Commis-
sioners to be
accessible.

7. The minute books account books records and other documents of the Commissioners transferred to the Education Authority by virtue of this Order shall be made accessible by the Education Authority at reasonable times and under reasonable conditions for inspection by all persons having an interest therein.

Transfer of
shares
stocks &c.

8. Notwithstanding anything in this Order contained the provisions of the sections of this Order of which the marginal notes are "Transfer of existing Protestant schools to Education Authority" "Transfer of records et cetera of Directors to Education Authority" and "Transfer of property of Commissioners to Education Authority" shall not apply to the transfer of shares stocks annuities or property of the Directors or Commissioners (if any) which are only transferable by recording the transfer in books kept by a company or other body or in manner prescribed by or under any Act of Parliament relating to such company or other body and such shares stocks annuities or property (if any) shall forthwith be transferred to and be vested in the Education Authority by the appropriate means and shall be held used and administered by the Education Authority for the purposes of this Order of the Education

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 1908 to 1921.

9. For the purpose of enabling the Education Authority to complete a title if thought fit to any part of the lands buildings and other heritable property transferred to and vested in them by virtue of this Order by expediting a notarial instrument notice of title or otherwise the Act confirming this Order shall be deemed to be and may be used as a general disposition or assignation as the case may be of such lands buildings and other property in favour of the Education Authority.

Order to be deemed a general disposition.

10. In lieu of the stamp duties which would have been payable upon the deeds or instruments which would otherwise have been required to pass the property interests and rights debts obligations and things in action in this Order referred to and to vest the same in the Education Authority or which otherwise might be payable in respect of the vesting of such property interests rights debts obligations and things in action by virtue of this Order there shall be paid a stamp duty of five pounds which duty shall be impressed upon a King's Printer's copy of the Act confirming this Order the Education Authority being bound to produce such stamped copy to the Commissioners of Inland Revenue within three months after the date of the passing of the Act confirming this Order.

Compounded stamp duty.

11. As from the commencement of this Order all debts liabilities and obligations due by or prestatable against and all bonds guarantees undertakings contracts leases agreements and proceedings made or entered into by the Commissioners or by the Directors (including without prejudice to the foregoing generality all arrangements made by the Commissioners or by the Directors with retired teachers officers or employees for payment of pensions wages or honoraria) are by this Order declared to be debts liabilities obligations bonds guarantees undertakings contracts leases agreements and proceedings of the Education Authority and shall without any further proceedings or intimation be good valid and effectual and may be enforced against and shall be paid or implemented or carried out by the Education Authority as if the same had been expressly incurred or made or

Transfer of obligations of Commissioners and Directors.

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— the individual members of the Commissioners and of the
Directors shall be indemnified by the Education Authority
from all such debts liabilities obligations bonds guarantees
undertakings contracts leases agreements proceedings
and arrangements.

Transfer of
officers.

12. As from the commencement of this Order the
existing officers and employees whole or part-time of the
Commissioners and of the Directors respectively (not
being teachers or other officers or employees employed in
the existing Protestant reformatory school or in the
existing Protestant industrial schools) shall become
officers and employees of the Education Authority and
shall hold their offices by the existing tenure and upon
the existing terms and conditions and while performing
the same duties shall receive not less salaries or remunera-
tion and shall be entitled to not less pensions or retiring
allowances than they would have received or been
entitled to if the Act confirming this Order had not been
passed provided that the Education Authority may
distribute the business to be performed by these officers
and employees in such manner as the Education Authority
may think fit and every such officer and employee shall
perform such duties in relation to that business as may
be directed by the Education Authority.

Transfer of
teachers &c.

13. As from the commencement of this Order the
existing staff of teachers or other officers or employees
wholly or part-time employed in the existing Protestant
reformatory school and in the existing Protestant in-
dustrial schools shall become teachers officers and
employees of the Education Authority and shall be
placed upon their existing scale of salaries and shall
remain subject to their existing tenure terms and
conditions (including right to pension and retiring
allowances and also in the case of the existing superin-
tendents or governors of the existing Protestant reforma-
tory school and the existing residential industrial schools
freedom from liability to be transferred from these
schools respectively to any other school) or they shall be
placed upon the same scale of salaries and become subject
to the same tenure terms and conditions as teachers and
other officers or employees of corresponding qualifications
in corresponding positions in other schools under the

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management of the Education Authority whichever shall be the more favourable to the transferred teachers officers or employees. A.D. 1926.
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14. The Education Authority may abolish the office of any existing whole or part-time teacher officer or employee of the Commissioners or Directors as the case may be whose office they may deem unnecessary but such teacher officer or employee shall be entitled to compensation by virtue of this Order. Compensation on abolition of office.

15. Section 120 of the Local Government (Scotland) Act 1889 (which relates to compensation to existing officers) shall with the necessary modifications apply to teachers officers and employees transferred or declared entitled to compensation under this Order who by virtue of this Order or anything done in pursuance or in consequence thereof suffer direct pecuniary loss by abolition of office or by diminution or loss of salary or remuneration subject as follows :— Ascertainment of compensation.

(a) References to the Local Government (Scotland) Act 1889 to the county council and to the convener or vice-convener shall be construed as references to the Act confirming this Order to the Education Authority and to the chairman thereof respectively :

(b) References to the Acts and rules relating to His Majesty's Civil Service shall be construed as references to the Acts and rules which were in operation at the date of the passing of the Local Government (Scotland) Act 1889 :

(c) In the proviso to subsection (2) of the said section 120 "the passing of this Act" shall except in the case of abolition of office mean the date when the loss arose and in the case of abolition of office the date of such abolition :

(d) Any expenses shall be paid out of the education fund of the Education Authority :

(e) Subsections (8) and (9) of the said section 120 shall not apply.

16. Sections 47 52 and 53 of the Local Government (Scotland) Act 1894 shall with the necessary modifications Application of statutory

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provisions
as to trans-
fers.

- (a) References to the fifteenth day of May one thousand eight hundred and ninety-five shall be construed as references to the commencement of this Order :
- (b) References to “ any authority ” shall be construed as references to the Commissioners or the Directors as the case may be :
- (c) References to the parish council shall be construed as references to the Education Authority :
- (d) References to “ this Act ” shall be construed as references to this Order.

Provision as
to Protes-
tant and
Roman
Catholic in-
mates in
same school.

17. It shall be competent to the Education Authority notwithstanding anything to the contrary contained in or any limitation in the provisions of the Education (Scotland) Acts 1872 to 1925 to conduct and manage Protestant reformatory schools and Roman Catholic reformatory schools and reformatory schools not restricted to the reception therein of inmates of a particular religious faith and without prejudice to this generality it shall be competent to the Education Authority to conduct and manage as heretofore the existing Protestant reformatory school and the existing Protestant industrial schools or to admit into any Protestant reformatory school or into any Protestant industrial school inmates who are not of the Protestant faith and it shall also be competent to the Education Authority with the consent and approval of the Department to renounce the certificate of any Protestant reformatory school or any Protestant industrial school or any school not restricted as aforesaid and to close any such school and either abandon the activities carried on therein (appropriate arrangements as to the inmates being duly and competently made) or to transfer the activities carried on therein and the inmates thereof to any other reformatory or industrial school already being managed and conducted or that thereafter may be opened managed and conducted by the Education Authority and they may do so notwithstanding that some or all of the inmates of the other schools already being managed and conducted or thereafter to be opened

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managed and conducted by them are not of the Protestant faith but any change in the composition of any reformatory or industrial school to be made by virtue of this Order shall be subject always to the condition that definite and regular religious instruction of the inmates of such schools shall be given in the case of inmates of the Protestant faith by teachers in the service of the Education Authority who are of the Protestant faith and in the case of inmates of the Roman Catholic faith by teachers in the service of the Education Authority who are of the Roman Catholic faith.

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18. Notwithstanding that one of the existing Roman Catholic reformatory and industrial schools is situated outwith the area of the Education Authority all of such reformatory and industrial schools shall for the purposes of section 6 (1) (a) and section 9 (1) of the Education (Scotland) Act 1918 be deemed to be schools which though not under the management of the Education Authority are operative within and included in the scheme for the provision of education within the area of the Education Authority approved by the Department as at the commencement of this Order and shall continue so to be included until otherwise determined by the Department but so that no such reformatory or industrial school shall be deemed to be a day school within the meaning of section 34 of the Education (Scotland) Act 1908.

Roman Catholic reformatory and industrial schools to be deemed within Education Scheme.

19. As from the commencement of this Order the several Acts and Orders specified in the Second Schedule to this Order shall be and are hereby repealed and the Commissioners and the Directors are hereby dissolved.

Repeal of Acts and Orders and dissolution of Commissioners and Directors.

20. All costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order and otherwise in relation thereto (including those incurred and to be incurred by the Commissioners and by the Directors) shall be borne and paid by the Education Authority out of the education fund of the Education Authority.

Costs of Order.

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A.D. 1926. The SCHEDULES referred to in the foregoing Order.

FIRST SCHEDULE.

(HERITABLE PROPERTIES).

(Referred to in the section of this Order of which the marginal note is "Transfer of existing Protestant schools to Education Authority.")

Heritable properties transferred from the Directors to and vested in the Education Authority.

I. EXISTING PROTESTANT REFORMATORY SCHOOL.

*Chapelton Training School for Girls East Chapelton Bearsden
near the City.*

All and whole that steading of ground part of the lands of East Chapelton lying on the east side of the turnpike road from Canniesburn Tollbar to Milngavie within the barony of Mugdock late regality of Montrose and county of Stirling now comprehended in the parish of New Kilpatrick and county of Dumbarton and containing 9 acres 2 roods 10 poles or thereby as particularly described in and disposed by disposition by John Meiklem farmer at Mosslands Renfrewshire and others in favour of the Directors dated 9th and recorded in the division of the general register of sasines applicable to the county of Stirling 10th July 1880 together with the teinds and whole parts privileges and pertinents thereof and with the benefit of a road mentioned in the said disposition which steading of ground and buildings thereon alike as to the dominium directum and the dominium utile are heritably vest in the Directors by virtue of the foresaid disposition in their favour dated and recorded as aforesaid (the property of the said steading of ground having been duly consolidated with the immediate superiority thereof) but subject to the terms of a minute of agreement between the Corporation and the Directors dated 22nd June and 4th July 1923.

II. THE EXISTING PROTESTANT INDUSTRIAL
SCHOOLS.

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(A) RESIDENTIAL SCHOOLS.

(1) (a) *The Boys' Industrial School Mossbank Hogganfield*
near the City.

All and whole that piece of ground containing 13 acres part of the farm and lands of Coshnock within the parish (formerly barony parish) of Glasgow and shire of Lanark as particularly described in and disposed by a disposition by Janet Wilson or Alexander residing at Mossbank Hogganfield in favour of the Right Honourable Charles Stuart Lord Blantyre and others as trustees for behoof of the Glasgow Industrial School Society dated 6th and recorded in the particular register of sasines for Renfrewshire and regality of Glasgow &c. 14th December 1867 with and under the reservations provisions declarations and others specified in an instrument of sasine in favour of William Adams recorded in the said particular register of sasines 20th June 1825 Item a footpath running in a direct line from the Tollhouse formerly situated upon Cumbernauld Road to the southern boundary of said piece of ground which footpath is more particularly referred to in said instrument of sasine in favour of William Adams recorded as aforesaid which piece of ground and others with the buildings erected on the said piece of ground though last vest in trustees for the said society are possessed by the Directors subject to the terms of a deed of servitude (of wayleave for sewer to Robroyston Hospital) granted by the Directors in favour of the Corporation dated 3rd July 1916.

Item the rights of tenancy under three leases of ground adjoining the school the first lease between the Corporation and the Directors dated 27th October &c. 1905 the second between Mrs. Caroline Francis Miller-Stirling of Craigbarnet and Millerston and the Directors dated 26th January &c. 1906 and the third between the Corporation and the Directors dated 25th September &c. 1914.

(b) *The Boys' Home in Whitevale Street in the City in*
connection with the Boys' Industrial School.

All and whole those premises situated at and forming number thirteen Whitevale Street in the city as particularly described in a disposition by Archibald Cameron Corbett M.P. and others as trustees therein mentioned in favour of the Directors dated 12th &c. and recorded in the register of sasines kept for the "burgh of Glasgow" 17th May 1909 always with

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(2) (a) *Girls' Industrial School Maryhill in the City.*

(i) All and whole that plot of ground containing 5 acres 1.6 poles part of the lands of Lochburn in that part of the parish (formerly the barony parish) of Glasgow disjoined therefrom and erected into the parish of Maryhill in the county of Lanark as particularly described in and disposed by a feu contract between Sir George Campbell of Succoth Bart. and the then "Commissioners for repressing Juvenile Delinquency" in the city dated 19th January &c. and recorded in the foresaid particular register of sasines 4th March and also as in the books of council and session 3rd June 1869 but under the reservations real liens burdens conditions and others specified and contained in the said feu contract dated and recorded as aforesaid which plot of ground with buildings thereon though last heritably vest in the "Commissioners" last above mentioned is now possessed by the Directors.

(ii) Item All and whole that plot of ground containing 2.534 acres part of the lands of Gilshochhill and Lochburn in the parish of Maryhill and county of Lanark as particularly described in and disposed by feu charter by the Trustees of the late Sir George Campbell of Succoth in favour of the Directors dated 17th September &c. and recorded in the division of the general register of sasines applicable to the county of the barony and regality of Glasgow and also as in the books of council and session 7th November 1879 but with and under the reservations real liens burdens conditions and others specified and contained in the said feu charter dated and recorded as aforesaid as modified so far as regards the construction and use of a road by minute of agreement between the said trustees of the late Sir George Campbell Bart. and the Directors dated 25th February &c. and registered in the books of council and session 18th March 1881 which plot of ground with the buildings thereon is heritably vest

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in the Directors by virtue of the said feu charter dated and recorded as aforesaid. A.D. 1926.

(iii) Item All and whole that plot of ground containing 3.352 acres part of the lands of Gilshochhill in the parish of Maryhill and county of Lanark as particularly described in a disposition by James Anderson tea merchant Glasgow in favour of the Directors dated 1st and recorded in the last mentioned division of the general register of sasines 9th November 1887 always with and under in so far as still subsisting and applicable the reservations real burdens conditions and others specified and contained in (first) a disposition by the trustees of the late Sir George Campbell of Succoth Bart. in favour of John Ewing Walker of Dalling Mhor Dunoon dated 3rd June &c. and recorded in the last mentioned division of the general register of sasines 15th June 1875 and (second) the foresaid disposition by James Anderson in favour of the Directors dated and recorded as aforesaid which plot of ground with the buildings thereon is heritably vest in the Directors by virtue of the said last mentioned disposition dated and recorded as aforesaid.

(b) *Girls' Home in Rottenrow in connection with the Girls' Industrial School Maryhill.*

All and whole that new middlemost foretenement of land high and laigh and others lying contiguous within the city on the south side of that street called Rottenrow as particularly described in and disposed by a disposition by the Glasgow City Educational Endowments Board in favour of the Directors dated 11th and recorded in the foresaid "burgh register of sasines" 12th November 1897 which tenement and others are heritably vest in the Directors by virtue of the said last mentioned disposition dated and recorded as aforesaid.

(B) DAY INDUSTRIAL SCHOOLS.

(3) *Rottenrow Day Industrial School in the City.*

(i) All and whole that area of ground containing 131½ square yards near to the south side of the said Rottenrow Street in the city as particularly described in and disposed by a disposition by Donald Cuthbertson and others testamentary trustees of William Bogle in favour of Henry Glassford Bell and others as trustees for the Glasgow Industrial School Society dated 25th January 1855 and subsequent dates and instrument of sasine thereon in favour of trustees of the said society recorded in the said "burgh register of sasines" 3rd February 1860 with and under the real liens burdens and others specified and contained in the said last mentioned disposition dated as aforesaid and instrument of sasine recorded as aforesaid

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(ii) Item All and hail that eastmost foretenement of land high and laigh and others within the burgh of Glasgow on the south side of Rottenrow Street as particularly described in and disposed by disposition by Donald Cuthbertson and others testamentary trustees foresaid in favour of the Honourable Charles Stuart Lord Blantyre and others trustees for the Glasgow Industrial School Society dated 16th October 1856 and instrument of sasine thereon in favour of trustees of the said society recorded in the said "burgh register of sasines" 3rd February 1860 but under the exception of the area of ground and others last before mentioned the real liens and burdens affecting which area of ground being by said last mentioned disposition abandoned and discharged.

(iii) Item All and whole that portion of ground with the tenements of land built thereon situated on the south side of Rottenrow Street in the city containing 326 square yards as particularly described in and disposed by disposition by William Alexander residing in Strathaven in favour of the Right Honourable Charles Stuart Lord Blantyre and others trustees for the said Glasgow Industrial School Society dated 3rd and instrument of sasine thereon in favour of said trustees of the said society recorded in the said "burgh register of sasines" 12th November 1859 which properties (i ii and iii) although heritably vest in trustees for the Glasgow Industrial School Society by virtue of the three last mentioned instruments of sasine respectively recorded as aforesaid are now possessed by the Directors.

(4) *Green Street Day Industrial School in the City.*

(i) All and whole that plot of ground within the Calton Parish of Glasgow and sheriffdom of Lanark lying to the east of Green Street Calton in the city containing 1905 square yards as particularly described in and disposed by a disposition by the Rev. George Davidson and others trustees therein mentioned in favour of the Directors dated 15th May &c. and recorded in the last mentioned division of the general register of sasines and also as in the books of council and session 20th May 1882 but always with and under in so far as still subsisting and applicable the exceptions servitudes burdens conditions and others specified in (1) Instrument of sasine in favour of the Rev. Valentine Ward and others as trustees dated 25th November 1829 and recorded in the foresaid particular register of sasines 14th January 1830 and (2) Instrument of sasine in favour of Hunter Finlay and others as trustees recorded in the foresaid particular register of sasines 21st July 1852 which plot of ground with buildings thereon is heritably vest in the Directors by virtue of the said last mentioned disposition in their favour dated and recorded as aforesaid.

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(ii) Item All and whole that plot of ground lying at the north end of Cragnestock Street in the city containing 142 square yards as particularly described in and disposed by a disposition by James Fletcher residing in Glasgow and others in favour of the Directors dated 18th &c. and recorded in the foresaid "burgh register of sasines" 25th May 1891 always with and under so far as still subsisting and applicable the burdens conditions provisions and others specified in (1) An instrument of sasine in favour of John Christie recorded in the said "burgh register of sasines" 20th May 1808 and (2) the said last mentioned disposition dated and recorded as aforesaid which plot of ground with buildings thereon is heritably vest in the Directors by virtue of the said last mentioned disposition dated and recorded as aforesaid.

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(iii) Item in the first place All and whole that piece of ground in Blackfauld or Calton lying within the parish (formerly barony parish) of Glasgow and shire of Lanark consisting of 2,562 $\frac{3}{4}$ square yards as particularly in the first place described in and disposed by disposition by Mrs. Mary McLean Kennedy or Lyle Trustee of William Kennedy in favour of the Directors dated 21st February &c. and recorded in the last mentioned division of the general register of sasines 19th March 1914.

In the second place All and whole that piece of ground lying in Blackfauld or Calton within the parish (formerly barony parish) of Glasgow and shire of Lanark consisting of 40 $\frac{3}{4}$ square yards as particularly in the second place described in and disposed by the said last mentioned disposition.

In the third place All and whole that piece of ground consisting of 168 $\frac{3}{4}$ square yards lying within the parish (formerly barony parish) of Glasgow and shire of Lanark as in the third place particularly described in and disposed by the said last mentioned disposition but always with and under (said three pieces of ground) in so far as applicable respectively and still subsisting the whole burdens conditions provisions declarations and others specified in (1) An instrument of sasine in favour of William Smith recorded in the foresaid particular register of sasines 11th November 1774 (2) Instrument of sasine in favour of Mrs. Eliza Grindley or Mitchell recorded in the general register of sasines 10th July 1849 (3) Disposition granted by William Macdonald in favour of William Smith dated 21st March 1835 and recorded in the foresaid particular register of sasines 25th November 1861 (4) Disposition granted by said William Smith in favour of Charles Grindley dated and recorded in the foresaid particular register of sasines 25th November 1861 which three pieces of ground with the buildings thereon are except as after mentioned now vest in the said Directors by virtue of said disposition by Mrs. Lyle in their favour dated and recorded as aforesaid that is to say under exception of the following parts

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A.D. 1926. thereof sold and disposed by the Directors viz. primo all and whole that steading of ground situated in Stevenson Street Calton in the city containing 677 $\frac{5}{8}$ square yards as particularly described in and disposed by a disposition by the Directors in favour of Andrew Cochran Limited Stevenson Street Calton in the city dated 28th August and recorded in the last mentioned division of the general register of sasines 3rd September 1914 secundo all and whole that lot of ground in the parish of Glasgow and county of Lanark consisting of 1,351 square yards as particularly described in and disposed by a disposition by the Directors in favour of George Graham and Alexander Graham both potato merchants in the city dated 14th and recorded in the said last mentioned division of the general register of sasines 19th May 1917.

(5) *Rose Street Day Industrial School in the City.*

All and whole that plot of ground on the south east side of Rose Street within the parish of Govan and sheriffdom of Lanark containing 1,800 square yards as particularly described in and disposed by a disposition by John Pollok of Faside in the parish of Mearns Renfrewshire in favour of the Directors dated 16th &c. and recorded in the said last mentioned division of the general register of sasines 23rd May 1888 but with and under so far as applicable and still subsisting the whole reservations burdens conditions and others specified and contained in (1) Feu contract between the Incorporation of Hutchesons' Hospital and Robert Thomson Junior dated 16th &c. February 1803 (2) Instrument of sasine in favour of John Pollok dated 21st January and recorded in the foresaid particular register of sasines 5th February 1840 (3) Instrument of sasine in favour of Claud Girdwood John Berry and William Robertson dated 21st July and recorded in the foresaid particular register of sasines 23rd August 1807 and (4) the said disposition by John Pollok first mentioned in favour of the Directors dated and recorded as aforesaid which plot of ground is heritably vest in the Directors by virtue of the said last mentioned disposition dated and recorded as aforesaid but subject to the terms of a disposition of 601 $\frac{1}{2}$ square yards part of said plot of ground granted by the Directors in favour of the testamentary trustees of Nathaniel Stevenson in security and for ensuring due payment of the feu duty exigible in respect of the remaining part of said plot of ground dated said disposition in security 29th March and recorded in the said last mentioned division of the general register of sasines 23rd May 1889.

(6) *William Street Day Industrial School in the City.*

(i) The right of tenancy under a lease between the School Board of Glasgow and the Directors dated 13th and 27th March 1902 (which lease has expired and is now effective by tacit

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relocation only for the year Whitsunday 1925 to Whitsunday 1926) of school building formerly known as St. Matthew's Parish School now as William Street Day Industrial School situated on north side of William Street Anderston in the city. A.D. 1926.
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(ii) Item All and whole that plot of ground containing 840 square yards on the north side of William Street Anderston in the city in the parish of Glasgow and the county of Lanark as particularly described in and disposed by a disposition by Charles Alexander Walker and others trustees of Berkeley Street United Free Church Congregation in the city in favour of the Directors dated 14th &c. and recorded in the last mentioned division of the general register of sasines 17th January 1920 but always with and under in so far as applicable thereto the burdens conditions provisions restrictions and others specified in an instrument of sasine in favour of Robert Knox recorded in the foresaid particular register of sasines 29th May 1846 which plot of ground with buildings thereon forming an addition to the school last mentioned is heritably vest in the Directors by virtue of the last mentioned disposition dated and recorded as aforesaid.

(7) *Hopehill Road Day Industrial School in the City.*

All and whole that plot of ground containing 3,656 $\frac{1}{2}$ square yards on the south east side of Hopehill Road in the city within the parish of Glasgow and county of Lanark as particularly described in and disposed by a disposition by M'Dowall Steven and Company Limited in favour of the Directors dated 31st December 1907 and recorded in the last mentioned division of the general register of sasines 2nd January 1908 always with and under the real liens burdens reservations and others specified and contained in (1) An instrument of sasine in favour of Kenneth Mathieson dated 17th and recorded in the foresaid particular register of sasines 18th December 1806 (2) Disposition by John Anderson Mathieson in favour of Thomas Steven and others as trustees dated and recorded in the said particular register of sasines 16th May 1865 and (3) The said disposition by the said M'Dowall Steven and Company in favour of the Directors dated and recorded as aforesaid which plot of ground with the buildings thereon is heritably vest in the Directors by virtue of the last mentioned disposition dated and recorded as aforesaid.

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SECOND SCHEDULE.

(REPEALS.)

(Referred to in the section of this Order of which the marginal note is "Repeal of Acts and Orders and dissolution of Commissioners and Directors.")

ACTS AND ORDERS REPEALED.

Session and Chapter of Act or Date of Order.	Short Title.	Extent of Repeal.
1. 41 & 42 Vict. c. cxxi.	The Glasgow Juvenile Delinquency Prevention and Repression Act 1878.	The whole Act so far as not already repealed.
2. 59 & 60 Vict. c. xxxv.	The Glasgow Juvenile Delinquency Prevention and Repression Amendment Act 1896.	The whole Act so far as not already repealed.
3. 18th October 1909.	Order of the Secretary for Scotland under section 132 of the Children Act 1908 providing for alteration amendment and adaptation of the Glasgow Juvenile Delinquency Prevention and Repression Acts 1878 and 1896.	The whole Order.
4. 18th June 1918.	Order of the Secretary for Scotland under section 132 of the Children Act 1908 amending Order of October 18th 1909 providing for alteration amendment and adaptation of the Glasgow Juvenile Delinquency Prevention and Repression Acts 1878 and 1896.	The whole Order.

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